



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Mark Christensen, Planner II
Subject: PLN-21-00016 / Logan Avenue and East Lincolnway Future Land Use Map Amendment
Date: January 24, 2022

Background:

The item for consideration is a **Future Land Use Map Amendment**. This is approved by **Resolution**.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 01/24/2022
- Public Services Committee 02/08/2022
- Final Consideration 02/14/2022

Related Items:

- Rezoning (UDC-21-00434)

Planning Commission Recommendation:

The Planning Commission heard this item at their January 18, 2022 meeting and **unanimously** recommended the Governing Body approve this application.

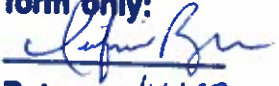
Board of County Commissioners Recommendation:

The item will go before the Board of County Commissioners for comment only. Their comments will be overviewed at the February 8 Public Services Committee meeting.

The Planning Commission Staff report is attached and has not been changed.

Attachments:

1. Resolution
2. Planning Commission Staff Report



Date: 1/19/22

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION CERTIFYING PLANNING COMMISSION ACTION AMENDING THE FUTURE LAND USE MAPS OF PLANCHEYENNE CHANGING THE LAND USE CATEGORY FROM COMMUNITY BUSINESS TO MIXED- USE COMMERCIAL FOR PROPERTY GENERALLY LOCATED WEST OF CAMPBELL AVENUE, NORTH OF NATIONWAY, AND SOUTH OF AND ADJACENT TO E. LINCOLNWAY."

WHEREAS, *PlanCheyenne*, as amended by *PlanCheyenne: Reflections and Progress* adopted by the Governing Body of the City of Cheyenne by Resolution No. 5573, is the Master Plan for the City of Cheyenne and the Comprehensive Plan for portions of Laramie County adopted by both the Governing Body of the City of Cheyenne and Laramie County Board of County Commissioners; and

WHEREAS, *Connect 2045: Update to the Master Transportation and Future Land Use Plan of PlanCheyenne* adopted by the Governing Body of the City of Cheyenne by Resolution No. 6106, is the Transportation Master Plan for the City of Cheyenne and the Comprehensive Plan for portions of Laramie County adopted by both the Governing Body of the City of Cheyenne and Laramie County Board of County Commissioners; and

WHEREAS, The Future Land Use Map is illustrated in *Connect 2045* as Map 10 and *PlanCheyenne: Reflections and Progress* as the Future Land Use Map on page 83;

WHEREAS, the intent of the Future Land Use plan is not to predetermine specific land uses for individual parcels or specific locations for uses or facilities, but to provide a general framework for neighborhoods and activity centers organized around roadway networks and major parks and open space; and

WHEREAS, Jamie Floyd, resident of Cheyenne, has initiated an amendment to the Future Land Use map to amend the land use category from Community Business to Mixed-Use Commercial; and

WHEREAS, after review of the application staff expanded the application to incorporate additional areas as properties in Exhibit A which is attached hereto and incorporated herein; and

WHEREAS, Plan Amendments approved by the Governing Body pursuant to the criteria set forth on Page 18 of *PlanCheyenne: Reflections and Progress*, as amended; and

WHEREAS, the Laramie County Board of County Commissioners reviewed the proposed future land use map amendment and were given the opportunity to make comments; and

WHEREAS, on January 4, 2021, notice of the Planning Commission public hearing was mailed to property owners within the amendment area; and

WHEREAS, a public hearing to receive public input and comments on the proposed Future Land Use map amendment for the above described property was held before the City of

Cheyenne Planning Commission on January 18, 2022 and the Commission approved the proposed Future Land Use map amendment; and

WHEREAS, Plan Amendment processes and procedures required by *PlanCheyenne*, as amended, have been followed with regard to the request by Jamie Floyd to amend the Future Land Use map category for the above-described property.

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

THAT, the City of Cheyenne Governing Body hereby certifies Planning Commission action amending the Land Use Plan for PlanCheyenne changing the land use category from Community Business to Mixed-Use Commercial, as shown in Exhibit A, in accordance with the procedures outlined in PlanCheyenne and Wyoming Statutes § 15-1-503 and § 15-1-505.

THAT, staff is authorized to amend affected maps of PlanCheyenne to reflect the aforementioned changes.

THAT, this resolution shall become effective after its passage, approval and publication.

PRESENTED, READ AND ADOPTED THIS ____ DAY OF _____, 2022.

PATRICK COLLINS, MAYOR

(S E A L)

ATTEST:

KRISTINA F. JONES, CITY CLERK



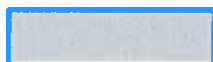
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EXHIBIT A: CITY OF CHEYENNE FUTURE LAND USE MAP AMENDMENT



- Proposed Mixed Use Commercial Emphasis Future Land Use



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CITY OF CHEYENNE PLANNING COMMISSION

01/18/2022

STAFF REPORT

FILE: PLN-21-00016: Future Land Use Plan Amendment from CB to MU-C for Logan Ave at E. Lincolnway

REQUEST: A request to amend the Future Land Use Plan from CB (Community Business) District to Mixed-Use Commercial (Mixed-Use Commercial)

LOCATION: West of Campbell Avenue, South of and adjacent to E. Lincolnway, and North of Nationway

APPLICANT: Jamie Floyd

OWNER: Various

ZONING: CB (Community Business) and MUB (Mixed-Use Business Emphasis) District

PURPOSE: To account for the urban and residential nature of the neighborhood.

PREPARED BY: Mark Christensen, AICP Planner II



RECOMMENDED MOTION:

Move to **approve** the Resolution amending the Future Land Use Plan for property generally located west of Campbell Avenue, north of Nationway, and south of and adjacent to E. Lincolnway from CB (Community Business) to MU-C (Mixed-Use Commercial), noting that the project meets the review criteria for approval.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- PlanCheyenne (2016 Community Plan)

BACKGROUND:

The applicant is requesting amending the Future Land Use Map for .10 acres of land from Community Business to Mixed-Use Commercial to accommodate a zone change to permit a pet grooming facility. Upon receiving the application for the Future Land Use Amendment, staff determined the amendment should be expanded to account for the urban and residential nature of the surrounding neighborhood. The expanded amendment encompasses 66 parcels.

A concurrent application for a zoning map amendment has been submitted. The zoning map amendment will accompany the future land use amendment at City Council. If the application for the zoning map amendment is approved, the applicant will be required to submit a site plan application for a change of use.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning	Land Use
Subject Site	Community Business	CB (Community Business) and MUB (Mixed-Use Residential)	Residential, Recreation, and Commercial
North	Urban Residential and Mixed-Use Commercial	HR, MUB, CB, and MR	Residential and Commercial
South	Industrial	LI	Light Industry
East	Mixed-Use Commercial and Urban Residential	MR and CB	Residential and Commercial
West	Open Space, Mixed-Use Commercial, and Industrial	P, LI, and CB	Park, Commercial and Light Industry

The property is shown as Community Business in the Future Land Use Plan. The Community Business category emphasizes a range of retail and office uses to serve neighborhoods and the community and region. The Community Business designation and supports the CB (Community Business) Zone District.

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to approve an amendment to the Future Land Use Map of the Comprehensive Plan, the Commission must make the following considerations outlined in the 2014 Community Plan (Build Chapter page 3-3). A detailed analysis is below:

1) BENEFICIAL OR ADDRESSES ISSUES - The proposed amendment is beneficial to the community or addresses issues not foreseen during the planning process.

The Community Business future land use designation does not match the character of the subject properties. Many of the properties within the future land use amendment are residential. To expand a residence or add more residential units to the area, an applicant would be required to rezone to a district that permits residential uses (likely MUB). The current future land use designation does not support this type of zone change. A future land use update would benefit the community by allowing the expansion of residential uses in the area, thus addressing an issue not foreseen in the planning process.

The proposed Future Land Use amendment **complies** with review criteria 1.

2) COMPATIBLY - The proposed amendment is compatible with the surrounding area, and the goals and policies of the Plan.

The subject property is adjacent to several properties with Mixed-use Commercial and Urban Residential designations. Furthermore, the proposed amendment to mixed-use commercial would support the existing businesses and residences in the area as the designation calls for a mix of commercial and residential uses. The proposed amendment is consistent with the goals and policies of PlanCheyenne, as discussed in more detail below.

The proposed Future Land Use amendment **complies** with review criteria 2.

3) IMPACT MITIGATION - The proposed amendment will address and mitigate impacts on transportation, services, and facilities.

Transportation:

The transportation network in this area of the City is currently developed. All impacts to the transportation network will be addressed through the platting and site plan processes.

Services:

The proposed change will not have any adverse effects on provision of services to the subject property. Service providers, such as the fire department, will be included in platting and site planning processes to assess service needs.

Facilities:

The proposed change will likely not require new facilities outside of the development area.

The proposed Future Land Use amendment **complies** with review criteria 3.

4) SERVICE PROVISION - The proposed amendment will have minimal effect on service provision, including adequacy or availability of urban facilities and services, and is compatible with existing and planned service provision

This land is within City limits and urban facilities and services are available to the subject properties.

The proposed Future Land Use amendment **complies** with review criteria 4.

5) ANNEXATION - The proposed amendment does not jeopardize the City's ability to annex the property.

The subject properties are all currently within City limits.

The proposed Future Land Use amendment **complies** with review criteria 5.

6) URBAN SERVICES AREA - The proposed amendment is consistent with the logical expansion of the Urban Services Area.

This land is currently within the Urban Services Area and does not expand the current area.

The proposed Future Land Use amendment **complies** with review criteria 6.

7) STRICT ADHERENCE - Strict adherence to the Plan would result in a situation neither intended nor in keeping with other key elements and policies of the Plan.

Strict adherence to the Plan may result in unintended consequences. The existing residences are not permitted to expand in their current zoning designation. The current future land use designation does not support zoning map amendments to permit these residences to rezone to a district in which they would be a permitted use. Furthermore, the current lot sizes of the residential properties in the area are not conducive to commercial development. The future land use amendment to Mixed-use Commercial acknowledges the existing residential development in the area without being detrimental to the existing commercial development in the area as it permits both.

The proposed Future Land Use amendment **complies** with review criteria 7.

8) PUBLIC WELFARE AND CONSISTENCY – The proposed plan amendment will promote the public welfare and will be consistent with the goals and policies of PlanCheyenne and the elements thereof.

Staff is satisfied that the proposed application will not have any adverse effects on public welfare. Furthermore, the application accomplishes the following policies contained within PlanCheyenne:

- **Policy 1.1.B. Flexibility to Market Demands:** This goal notes that the Future Land Use Plan does not predetermine all uses on individual parcels and is meant to provide flexibility. The future land use map amendment to MU-C will accommodate existing development without being detrimental to existing conditions.
- **Policy 1.4.A. Infill Opportunities:** The future land use map amendment may facilitate infill opportunities for residential expansion. The community is currently facing a housing shortage and allowing residential in more places and providing more opportunities for residential expansion will aid in addressing the shortage.

- **Policy 2.1.A. Enhance and Stabilize Existing Neighborhoods:** This amendment recognizes the existing character of the neighborhood as a mix of residential and commercial uses.

The proposed Future Land Use amendment **complies** with review criteria 8.

CONFORMANCE WITH APPLICABLE PLANS:

No other plans are applicable for this area.

CONCLUSION:

Staff recommends a MU-C Land Use Category for this property because it acknowledges the existing character of the neighborhood. The area is made up of residential and commercial uses and the current future land use designation only accommodates the commercial uses. A future land use amendment to MU-C will support future rezoning initiatives in the area that permit the expansion of residential uses in the area while allowing the continuance of commercial uses.

ALTERNATIVES:

1. Approve the Resolution amending the Land Use Plan as submitted by the applicant and expanded upon by staff (**Staff Recommendation**).
2. Approve the Resolution amending the Land Use Plan subject to modifications.
3. Deny the Resolution to not amend the Land Use Plan. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
4. Postpone the Resolution until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

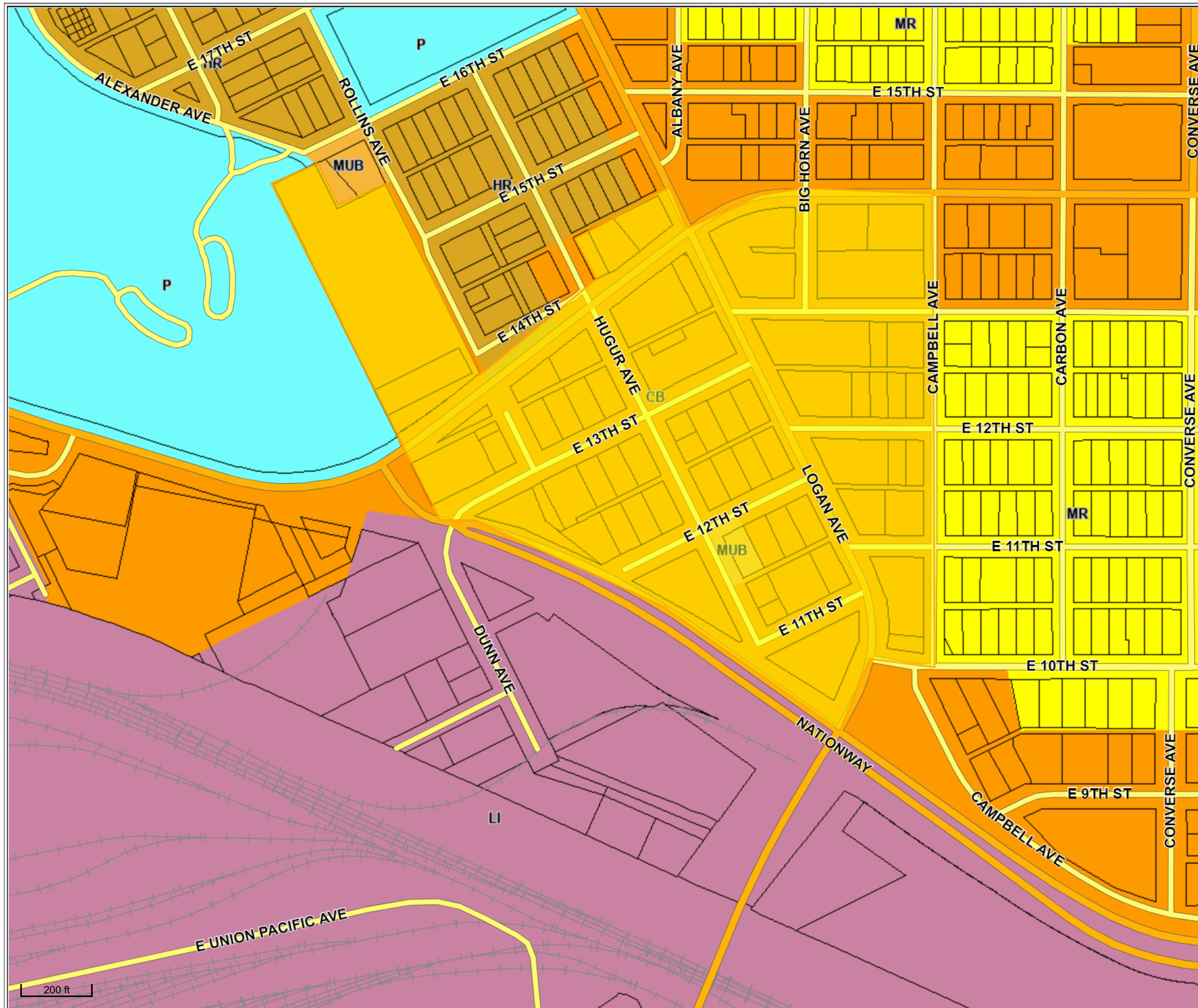
In the event that the Commission acts contrary to staff's recommendation, the Commission shall cite specific reasons (based on the review criteria) for approval or denial.

STAFF RECOMMENDATION:

Staff recommends approval of the Resolution amending the Land Use Plan for 66 lots generally located west of Campbell Avenue, north of Nationway, and south of and adjacent to E. Lincolnway from CB (Community Business) to MU-C (Mixed-Use Commercial Emphasis).

ATTACHMENTS:

1. Zoning Map
2. Land Use Plan Map
3. Application
4. Map showing Proposed Amendment (either staff or applicant produced)



Laramie County Wyoming MapServer

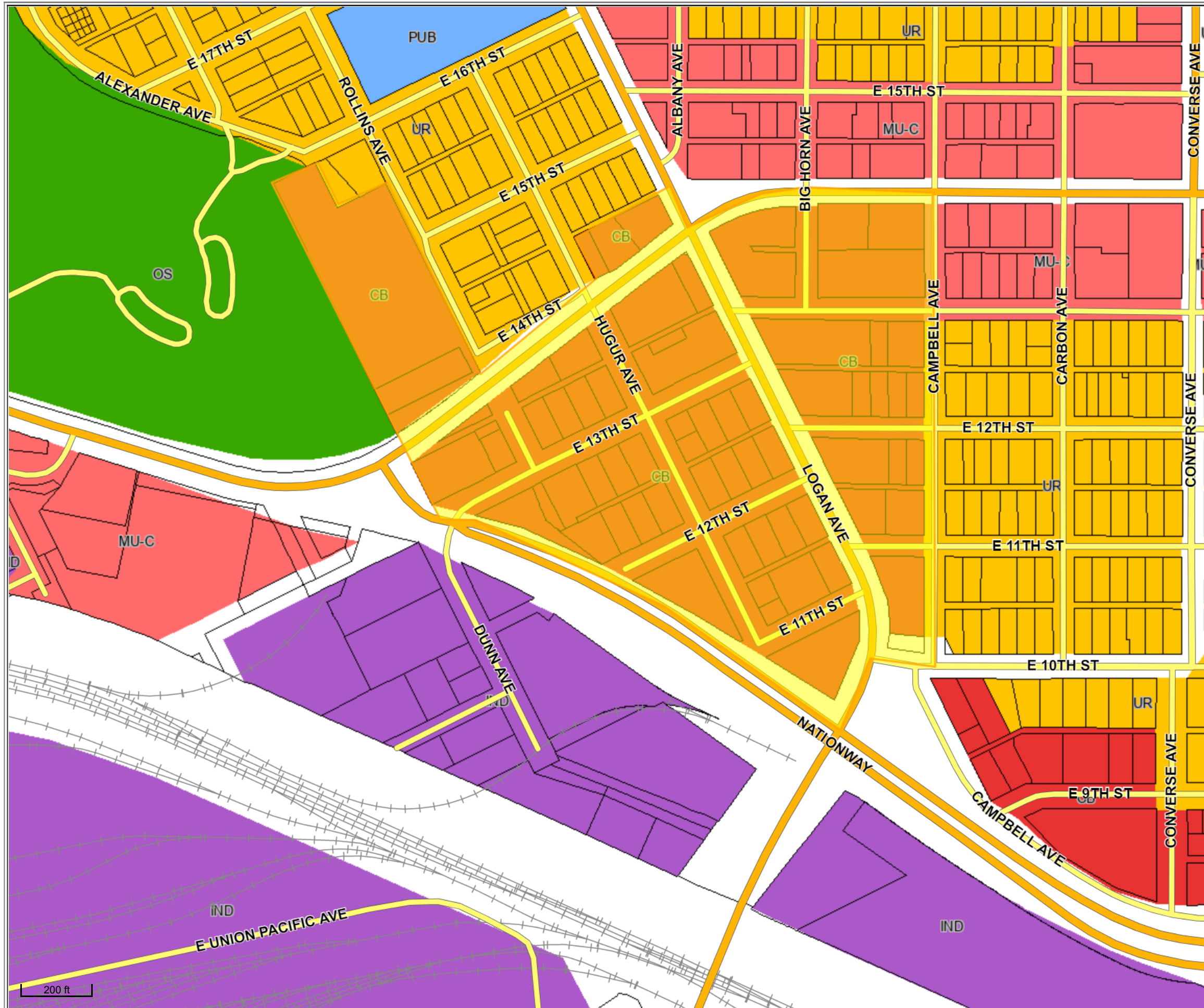
Future Land Use Amendment
CB to MU-C

- HR
- MR
- LR
- NR-2
- NR-3
- AR
- A-1
- A-2
- AG
- MUR
- CBD
- CB
- NB
- MU
- MUB
- MUE
- HI
- LI
- P
- AD
- PUD
- X



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printed 1/11/2022



Laramie County Wyoming MapServer

Future Land Use Amendment
CB to MU-C

- Agricultural/Rural
- Rural Residential
- Urban Transition Residential
- Urban Residential
- Mixed-Use Residential
- Mixed-Use Commercial
- Mixed-Use Employment
- Industrial
- Central Business District
- Community Business
- Public and Quasi-Public
- Military/Federal
- Open Space and Parks



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printed 1/11/2022

Planning and Development: Comprehensive Plan Amendment Application

Submission date: **27 December 2021, 6:51PM**

Receipt number: **4**

Related form version: **5**

General Information

Applicant Name: **Jamie Floyd**

Applicant Address: **1602 E 11th St Cheyenne wyoming 82001**

Applicant City: **Cheyenne**

Applicant State: **Wyoming**

Applicant Zip Code: **82001**

Applicant Phone: **3072866237**

Applicant Email: **reno31@msn.com**

Representative Name: **Jamie Floyd**

Representative Address: **1602 E 11th St Cheyenne wyoming 82001**

Representative City: **Cheyenne**

Representative State: **Wyoming**

Representative Zip Code: **82001**

Representative Phone: **3072866237**

Representative Email: **reno31@msn.com**

Who is the primary contact regarding this application? **Applicant**

Project Location (Street Address or General Location): **1602 E 11th St Cheyenne wyoming 82001**

Assessor's Parcel ID number(s)	14663242100800
Total Project Area	4356

Application-Specific Questions

Written Statement / Citizen request	I am requesting a change from CB zoning to MU-C zoning
Land Use Plan Amendment Map	Dog Spa ZC.pdf
Supporting Documents / Information	Allstar interior with dementions.pdf

Review Criteria

The proposed amendment is beneficial to the community or addresses issues not foreseen during the planning process;	Acknowledgement of this review criteria
The proposed amendment is compatible with the surrounding area, and the goals and policies of the Plan;	Acknowledgement of this review criteria
The proposed amendment will address and mitigate impacts on transportation, services, and facilities;	Acknowledgement of this review criteria
The proposed amendment will have minimal effect on service provision, including adequacy or availability of urban facilities and services, and is compatible with existing and planned service provision;	Acknowledgement of this review criteria
The proposed amendment does not jeopardize the City's ability to annex the property;	Acknowledgement of this review criteria
The proposed amendment is consistent with the logical expansion of the Urban Services Area;	Acknowledgement of this review criteria
Strict adherence to the Plan would result in a situation neither intended nor in keeping with other key elements and policies of the Plan; and	Acknowledgement of this review criteria

The proposed plan amendment will promote the public welfare and will be consistent with the goals and policies of PlanCheyenne and the elements thereof.

Acknowledgement of this review criteria

Signature / Certification

Applicant Signature

Name of signatory: Jamie Floyd

A handwritten signature in black ink, appearing to read "Jamie Floyd", written in a cursive style.

[Link to signature](#)

Please enter an email address for an email receipt.

reno31@msn.com



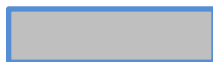
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CITY OF CHEYENNE FUTURE LAND USE MAP AMENDMENT



- Proposed Mixed Use Commercial Emphasis Future Land Use